

Court No. - 32

Case :- WRIT - C No. - 62719 of 2012

Petitioner :- Mohamad Gulshan

Respondent :- Managing Director Paschimanchal Vidyut Vitran Nigam Ltd.&Anr

Petitioner Counsel :- Sushil Kumar Shukla

Respondent Counsel :- N. Mishra

Hon'ble R.K. Agrawal,J.

Hon'ble Ram Surat Ram (Maurya),J.

On the request of Sri Dharmendra Srivastava, put up as fresh on 10.12.2012 before the appropriate Court in order to enable him to obtain instructions in the matter.

Order Date :- 5.12.2012

Hsc/

Court No. - 37

Case :- WRIT - C No. - 62719 of 2012

Petitioner :- Mohamad Gulshan

Respondent :- Managing Director Paschimanchal Vidyut Vitran Nigam Ltd.&Anr

Petitioner Counsel :- Sushil Kumar Shukla

Respondent Counsel :- N. Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner and Shri Dharmendra Srivastava appearing for the respondent nos. 1 and 2.

By means of this writ petition the petitioner has prayed for quashing the notice 26.9.2012 by which the petitioner was informed that his line has been disconnected and his prayer for reconnection shall be considered after payment of an amount of Rs. 24,963/-.

The petitioner's case is that he has submitted an application to the Executive Engineer for adjusting the amount of Rs. 3,000/- and his bill may be corrected.

We are of the view that against the relief, which is sought in the present writ petition, the petitioner has remedy to file an appropriate complaint for correction of the bills in accordance with U.P. Electricity Supply Code 2005 and it is for the authorities concerned to consider and decide the same.

In view of the aforesaid, the writ petition is disposed of with the liberty to the petitioner to file an appropriate complaint under the U.P. Electricity Supply Code 2005 before the Executive Engineer and the Executive Engineer shall consider and decide the same in accordance with law.

With the aforesaid direction, the writ petition is finally disposed of.

Order Date :- 10.12.2012

Sunil Kr. Gupta